

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Adip Vora	Team: Squad #01	CCRB Case #: 202204302	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 06/22/2022 10:30 AM, Wednesday, 06/22/2022 12:00 PM, Wednesday, 06/22/2022 11:30 PM, Thursday, 06/23/2022 1:08 AM	Location of Incident: § 87(2)(b) 47 Precinct stationhouse	18 Mo. SOL 12/22/2023	Precinct: 47
Date/Time CV Reported Wed, 06/22/2022 11:46 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/30/2022 4:41 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Edgar Vargas	05493	973008	047 PCT
2. PO Brian Diaz	18840	963010	047 PCT
3. Officers			
4. SGT Alldon Verdejo	03317	951387	047 PCT
5. PO Omar Habib	00748	942899	047 PCT
6. PO Edward Pellerano	31134	953226	047 PCT
7. PO Brian Cabreramezquita	25520	969558	047 PCT
8. PO Travis Gembecki	23343	964014	047 PCT
9. PO Steven Mora	04067	969231	047 PCT
10. SGT Howard Roth	03468	949582	047 PCT
11. LT Jason Bass	00000	942981	047 PCT
12. PO Erick Landaverde	26042	964107	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO James Cook	13507	966001	047 PCT
2. PO Andres Cordero	03199	964457	047 PCT
3. PO Thomas Lolos	20651	971533	047 PCT
4. CPT Alesandro Florentino	00000	940825	047 PCT
5. PO Yerald Perez	22026	959887	047 PCT
6. PO Anthony Morel	20475	963171	047 PCT
7. SGT Timothy Cawley	03575	954619	FTU 10
8. PO Adrian Martinez	22509	969946	047 PCT
9. PO William Villar	19328	970296	047 PCT
10. PO Cassandra Marrero	22395	969942	047 PCT
11. PO William Ortiz	10896	970754	047 PCT
12. PO Jose Diaz	29206	967044	047 PCT
13. PO Coleman Murphy	06021	970728	047 PCT
14. PO Usman Rahyab	27504	972368	047 PCT
15. PO Orlando Espinoza	21425	967863	047 PCT
16. PO Juma Saleh	20929	972235	047 PCT
17. PO Jahny Cuevas	22070	971887	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
18. PO Jose Vazquezrubert	12011	970919	047 PCT
19. PO Jose Carbo	00388	972555	047 PCT
20. PO Stephanie Clayton	22555	957472	047 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Brian Cabreramezquita	Force: On June 22, 2022, at § 87(2)(b) in the Bronx, Police Officer Brian Cabreramezquita pointed his gun at § 87(2)(b)	A . Miscellaneous - Subject Resigned
B . PO Edward Pellerano	Force: On June 22, 2022, at § 87(2)(b) in the Bronx, Police Officer Edward Pellerano pointed his gun at § 87(2)(b)	B . Unfounded
C . PO Edgar Vargas	Force: On June 22, 2022, at § 87(2)(b) in the Bronx, Police Officer Edgar Vargas pointed his gun at § 87(2)(b)	C . Unfounded
D . PO Brian Diaz	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Brian Diaz tightly handcuffed § 87(2)(b)	D . Unfounded
E . PO Brian Diaz	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Brian Diaz used physical force against § 87(2)(b)	E . Substantiated
F . PO Brian Diaz	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Brian Diaz used physical force against § 87(2)(b)	F . Unfounded
G . SGT Alldon Verdejo	Abuse: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Sergeant Alldon Verdejo forcibly removed § 87(2)(b) to the hospital.	G . Within NYPD Guidelines
H . PO Travis Gembecki	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Travis Gembecki used physical force against § 87(2)(b)	H . Substantiated
I . PO Erick Landaverde	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Erick Landaverde used physical force against § 87(2)(b)	I . Substantiated
J . PO Travis Gembecki	Abuse: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Travis Gembecki threatened to arrest § 87(2)(b)	J . Within NYPD Guidelines
K . PO Travis Gembecki	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Travis Gembecki used physical force against § 87(2)(b)	K . Within NYPD Guidelines
L . PO Erick Landaverde	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Erick Landaverde used physical force against § 87(2)(b)	L . Within NYPD Guidelines
M . PO Steven Mora	Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Steven Mora spoke discourteously to § 87(2)(b)	M . Substantiated
N . PO Omar Habib	Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Omar Habib spoke discourteously to § 87(2)(b)	N . Substantiated
O . PO Omar Habib	Abuse: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Omar Habib made a sexually suggestive remark to § 87(2)(b)	O . Substantiated
P . PO Steven Mora	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Steven Mora used physical force against § 87(2)(b)	P . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
Q . PO Steven Mora	Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Steven Mora spoke discourteously to § 87(2)(b)	Q . Substantiated
R . Officers	Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, officers used physical force against § 87(2)(b)	R . Officer(s) Unidentified
S . LT Jason Bass	Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Lieutenant Jason Bass spoke discourteously to § 87(2)(b)	S . Substantiated
T . LT Jason Bass	Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Lieutenant Jason Bass spoke discourteously to § 87(2)(b)	T . Substantiated
U . Officers	Abuse: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, officers refused to provide their name to § 87(2)(b)	U . Unfounded
V . Officers	Abuse: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, officers refused to provide their shield number to § 87(2)(b)	V . Unfounded
W . SGT Howard Roth	Abuse: On June 23, 2022, at 4111 Laconia Avenue in the Bronx, Sergeant Howard Roth refused to provide his name to § 87(2)(b)	W . Substantiated
X . SGT Howard Roth	Abuse: On June 23, 2022, at 4111 Laconia Avenue in the Bronx, Sergeant Howard Roth refused to provide his shield number to § 87(2)(b)	X . Substantiated
Y . SGT Howard Roth	Abuse: On June 23, 2022, at 4111 Laconia Avenue in the Bronx, Sergeant Howard Roth threatened to arrest § 87(2)(b)	Y . Within NYPD Guidelines

Case Summary

On June 22, 2022, § 87(2)(b) filed this complaint with IAB via phone. On June 30, 2022, the CCRB received this complaint.

On June 22, 2022, at approximately 10:30 AM, § 87(2)(b) was in his room at the § 87(2)(b) located at § 87(2)(b) in the Bronx when Police Officers Brian Cabreramezquita, Edward Pellerano, and Edgar Vargas, of the 47th Precinct, pointed their guns at § 87(2)(b) (**Allegation A: Force – Miscellaneous - Subject Resigned; Allegations B and C: Force – Unfounded**). The officers arrested § 87(2)(b) for assault.

§ 87(2)(b) was brought to the 47th Precinct stationhouse, located at 4111 Laconia Avenue in the Bronx. At approximately 12:00 PM, PO Brian Diaz, of the 47th Precinct, tightened § 87(2)(b) handcuffs (**Allegation D: Force – Unfounded**). PO Diaz used physical force against § 87(2)(b) (**Allegation E: Force – Substantiated; Allegation F: Force – Unfounded**). Sgt. Verdejo forcibly removed § 87(2)(b) to the hospital (**Allegation G: Abuse of Authority – Within NYPD Guidelines**).

§ 87(2)(b) returned to the 47th Precinct stationhouse from the hospital and was released at approximately 11:30 PM. § 87(2)(b) remained in the stationhouse to retrieve his property when POs Travis Gembecki and Erick Landaverde used physical force to eject § 87(2)(b) from the stationhouse (**Allegation H and I: Force – Substantiated**). PO Gembecki threatened to arrest § 87(2)(b) (**Allegation J: Abuse of Authority – Within NYPD Guidelines**). POs Gembecki and Landaverde used physical force against § 87(2)(b) (**Allegations K and L: Force – Within NYPD Guidelines**). § 87(2)(b) remained outside of the stationhouse, where POs Steven Mora and Omar Habib spoke discourteously to him (**Allegations M and N: Discourtesy – Substantiated**). PO Habib made a sexually suggestive remark to § 87(2)(b) (**Allegation O: Abuse of Authority – Substantiated**). PO Mora used physical force against § 87(2)(b) and spoke discourteously to him (**Allegation P: Force – Within NYPD Guidelines; Allegation Q: Discourtesy – Substantiated**). Officers used physical force against § 87(2)(b) (**Allegation R: Force – Officers Unidentified**). § 87(2)(b) was rearrested for disorderly conduct, and inside of the stationhouse, Lieutenant Jason Bass spoke discourteously to § 87(2)(b) (**Allegations S and T: Discourtesy – Substantiated**). Officers refused to provide their names and shield numbers to § 87(2)(b) (**Allegations U and V: Abuse of Authority – Unfounded**).

On June 23, 2022, at approximately 1:08 AM, § 87(2)(b) was again released from the 47th Precinct stationhouse after being issued a summons. Outside of the stationhouse, Sgt. Howard Roth refused to provide his name and shield number to § 87(2)(b) (**Allegations W and X: Abuse of Authority – Substantiated**). Sgt. Roth threatened to arrest § 87(2)(b) (**Allegation Y: Abuse of Authority – Within NYPD Guidelines**).

§ 87(2)(b) arrest and summons are sealed. § 87(2)(b) did not provide an unsealing order to the investigation.

51 body-worn camera (BWC) videos were received in relation to this incident (**Board Reviews 01, 10-27**). The investigation requested stationhouse footage from the NYPD but did not receive a response. The IAB case file for this incident did not contain stationhouse footage (**Board Review 48**).

Findings and Recommendations

Allegation (A) Force: On June 22, 2022, at § 87(2)(b) in the Bronx, Police Officer Brian Cabreramezquita pointed his gun at § 87(2)(b)

Allegation (B) Force: On June 22, 2022, at § 87(2)(b) in the Bronx, Police Officer Edward Pellerano pointed his gun at § 87(2)(b)

Allegation (C) Force: On June 22, 2022, at § 87(2)(b) in the Bronx, Police Officer Edgar Vargas pointed his gun at § 87(2)(b)

§ 87(2)(b) testified that he was at the § 87(2)(b) located at § 87(2)(b) in the Bronx because he was trying to put someone he knew, but whose information he did not provide, into rehab and wanted her to be somewhere where she would not be tempted to get high (**Board Review 02**). At some point, she left the room and § 87(2)(b) called her cousin about what was going on. About 10 minutes after she left, § 87(2)(b) heard a knock on his door and saw multiple officers outside. § 87(2)(b) exited his room and was held at gunpoint by PO Cabreramezquita, PO Pellerano, and PO Vargas before he was placed in handcuffs.

PO Vargas' BWC from 05:20 to 07:20 and PO Cabreramezquita's BWC from 05:10 to 07:10 captures the beginning of the officers' interaction with § 87(2)(b) to when they place him in handcuffs (**Board Reviews 10 and 11**). At no point does any officer captured draw or point their firearm at § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **Miscellaneous – Subject Resigned**.

§ 87(2)(g) BWC footage captures the entire timeframe of the alleged misconduct and does not capture any officer pointing their gun at § 87(2)(b) § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations B and C** be closed as **Unfounded**.

Allegation (D) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Brian Diaz tightly handcuffed § 87(2)(b)

§ 87(2)(b) testified that, after he was handcuffed, PO Diaz transported him to the 47th Precinct stationhouse (**Board Review 02**). At the front desk, § 87(2)(b) repeatedly told PO Diaz and Sgt. Verdejo that his hands were messed up from rheumatoid arthritis, and that he had two broken hands. PO Diaz tightened the handcuffs on § 87(2)(b) hands multiple times by squeezing them after they were already on.

PO Pellerano's BWC footage from 09:18 to 09:38 captures PO Pellerano asking PO Cabreramezquita, while they are still in the hotel room, if he double-locked the handcuffs (**Board Review 12**). PO Cabreramezquita says no, and PO Pellerano tells § 87(2)(b) that he is going to double-lock the handcuffs so that they do not tighten up on him. PO Pellerano then double-locks § 87(2)(b) handcuffs. By 16:30, § 87(2)(b) is brought down to an NYPD vehicle where PO Diaz is waiting. At no point in the footage does any officer undo the double-lock.

PO Vargas' BWC footage from 16:40 to 28:55 and PO Diaz's BWC footage from 16:30 to 28:50 capture the entire time § 87(2)(b) is in custody from when he is placed in the NYPD vehicle to when he is brought to the stationhouse (**Board Reviews 10 and 13**). At no point in the footage does any officer undo the double-lock. PO Diaz's BWC footage from 28:50 to 32:20 captures PO Diaz, PO Vargas, and Sgt. Verdejo (behind the desk, not captured in the footage) conducting the beginning of § 87(2)(b) arrest processing at the desk (**Board Review 13**). § 87(2)(b) repeatedly yells at PO Diaz to let go of him, to stop pulling on his arm, and that PO Diaz is hurting him. § 87(2)(b) begins yelling while PO Diaz is holding § 87(2)(b) by the crook of his left elbow. § 87(2)(b) complains of pain again in his arm and his wrist while PO Diaz is holding the

scanning wand with one hand. PO Diaz's other hand is not visible at that point. § 87(2)(b) does not make any complaints that PO Diaz is tightening the handcuffs or squeezing his wrists. PO Diaz is not captured pulling § 87(2)(b) and § 87(2)(b) arm is not captured moving in any significant way. The footage does not capture PO Diaz using the double-locking tool, undoing the double-lock on § 87(2)(b) handcuffs, or adjusting § 87(2)(b) handcuffs in any way. § 87(2)(b) does not tell the officers that he has two broken hands or rheumatoid arthritis at any point.

PO Diaz testified that he did not adjust § 87(2)(b) handcuffs at any point (**Board Review 03**). PO Diaz did not double-lock § 87(2)(b) handcuffs but knew that they were because the officers conducted a procedural check to confirm that § 87(2)(b) handcuffs were double-locked before placing him in the vehicle by squeezing them to see if they clicked and tightened. Double-locked handcuffs would not click or tighten. PO Diaz did not conduct the check himself but saw that it was conducted. § 87(2)(b) was driven back to the stationhouse and his handcuffs remained on the entire time. PO Diaz brought § 87(2)(b) to the desk, in front of Sgt. Verdejo. § 87(2)(b) complained his handcuffs were too tight and screamed for PO Diaz to let go of him and not touch him. PO Diaz was required to hold onto § 87(2)(b) and told § 87(2)(b) that he had to hold him because he was a defendant and could not be loose in the stationhouse. § 87(2)(b) complained that his arm and wrist area hurt. There was a sticker placed on the ground in the shape of a circle in the stationhouse which is where § 87(2)(b) feet should be. PO Diaz told § 87(2)(b) to stay in the circle and § 87(2)(b) repeatedly attempted to move out of the circle. As § 87(2)(b) moved away from the circle, PO Diaz remained steady on § 87(2)(b) arm to guide him back to the circle. PO Diaz did not do anything except grab § 87(2)(b) arm and did not adjust § 87(2)(b) handcuffs.

PO Pellerano double-locked § 87(2)(b) handcuffs shortly after § 87(2)(b) was in police custody. No officer was in a position to undo the double-locks, as PO Diaz was mainly handling § 87(2)(b) and undoing the double-locks would have required both of PO Diaz's hands, one of which was always visible in video footage. § 87(2)(b) handcuffs could not be tightened due to the double-lock, and the entire time § 87(2)(b) interacted PO Diaz, both inside and outside of the stationhouse, § 87(2)(b) handcuffs were double-locked. § 87(2)(g)

it is recommended that **Allegation D** be closed as **Unfounded**.

Allegation (E) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Brian Diaz used physical force against § 87(2)(b)

Allegation (F) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Brian Diaz used physical force against § 87(2)(b)

§ 87(2)(b) testified that, when PO Diaz brought him to a holding cell, § 87(2)(b) pulled away from PO Diaz because the handcuffs were pushing in on his wrists (**Board Review 02**). PO Diaz opened the cell door and pushed § 87(2)(b) into the cell while stepping on § 87(2)(b) feet and ankles at his instep. Since PO Diaz pushed § 87(2)(b) forward while stepping on him, PO Diaz twisted § 87(2)(b) ankle, almost broke § 87(2)(b) leg, and broke both of § 87(2)(b) ankles. § 87(2)(b) stumbled into the wall of the cell and remained upright after the push. The investigation was unable to obtain § 87(2)(b) medical records as he did not provide a HIPAA release form.

PO Diaz's BWC footage from 35:00 to 35:40 captures PO Diaz placing § 87(2)(b) in a holding cell (**Board Review 13**). While walking to the cell area, PO Diaz tells § 87(2)(b) that he is going to put § 87(2)(b) into the cell. § 87(2)(b) repeatedly says that he does not want to be in the cell and does not need to be in a cell. § 87(2)(b) legs are shackled. PO Diaz's BWC falls off his chest, onto the floor, but faces upward. PO Diaz's uses his open hands in an outward and forward

motion against § 87(2)(b) back as he pushes § 87(2)(b) into the cell. § 87(2)(b) stumbles about two to three feet and hits the opposite wall. PO Yerald Perez reaches an arm out and taps PO Diaz's chest. § 87(2)(b) remains upright and walks towards PO Diaz while saying, "oh really, that's how it is." § 87(2)(b) paces back and forth inside the cell and tells PO Diaz that he is going to be pressing charges against him. The footage does not capture PO Diaz stepping on § 87(2)(b) foot or with his foot or leg on § 87(2)(b) instep at all.

PO Perez's BWC footage from 01:10 to 01:13 captures a different angle of the push (**Board Review 15**). PO Perez enters the holding cell room after PO Diaz and § 87(2)(b) were already inside. PO Diaz brings § 87(2)(b) to the doorway of the cell and PO Perez uses one hand to guide § 87(2)(b) into the entrance of the cell. § 87(2)(b) is not captured pushing against PO Diaz, although PO Perez turns his body away from PO Diaz and § 87(2)(b) just prior to PO Diaz's BWC falling off his chest, then turns back towards them. § 87(2)(b) entry into the cell is captured and he is walking forward with no apparent resistance. PO Diaz then uses two hands to push § 87(2)(b) forward into the cell from the doorway while leaning into the cell himself.

PO Diaz testified that § 87(2)(b) refused to go in the cells, both verbally and by pushing towards PO Diaz and pulling away from him (**Board Review 03**). PO Diaz held onto § 87(2)(b) and nudged him forward into the cell using both hands. PO Diaz maintained his grip on § 87(2)(b) and, with his grip on him, moved him forward slightly and let go. § 87(2)(b) stumbled when PO Diaz let him go, though PO Diaz did not know why. § 87(2)(b) did not hit the cell wall, and PO Diaz did not push § 87(2)(b) at any point. PO Diaz maintained this testimony after reviewing both his own and PO Perez's BWC videos.

Patrol Guide Procedure 221-01 requires officers to consider the totality of the circumstances in determining whether the use of force is reasonable, including, but not limited to, actions taken by the subject, the duration of the action, the amount of officers present in relation to the amount of subjects, and whether the subject is actively resisting custody. It prohibits the use of any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent escape or to overcome active physical resistance (**Board Review 28**).

Patrol Guide Procedure 221-02 directs officers to apply no more than the reasonable force necessary to gain control (**Board Review 29**).

§ 87(2)(b) actions as captured on video footage were limited to verbal statements that he did not want to go into the cell. At the time at which § 87(2)(b) was in the doorway of the cell, he was not physically resisting custody or attempting to escape, though it is unclear if he was physically resisting prior to that point. Two officers, PO Diaz and PO Perez, were present to handle one handcuffed and leg-shackled prisoner and place him inside of the cell. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation E** be closed as **Substantiated**.

BWC footage does not capture PO Diaz stepping on § 87(2)(b) feet or ankles when he pushed § 87(2)(b) was able to walk and stand during and after PO Diaz's push and did not complain of any pain or damage to his body immediately after the push. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation F** be closed as **Unfounded**.

Allegation (G) Abuse of Authority: On June 22, 2022, at 4111 Laconia Avenue in the Bronx,

Sergeant Alldon Verdejo forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified that he requested medical attention multiple times (**Board Review 02**). When medical staff arrived, they only paid attention to PO Diaz and Sgt. Verdejo, and ignored § 87(2)(b) when he told them why he needed medical attention. § 87(2)(b) repeatedly told EMS that he did not want to go to the hospital, but officers strapped § 87(2)(b) to a chair and placed him in an ambulance. § 87(2)(b) was brought to the hospital despite telling EMS that he did not want to go. § 87(2)(b) did not provide a signed HIPAA release form; as such, the investigation was unable to obtain § 87(2)(b) medical records related to this removal.

PO Diaz's BWC footage from 31:15 to 32:30 captures § 87(2)(b) requesting an ambulance (**Board Review 13**). PO Diaz goes on his radio after confirming that § 87(2)(b) wants an ambulance. It is unclear whether he called for an ambulance. At 35:00, PO Diaz tells § 87(2)(b) that they are going to put him in the cell until an ambulance comes.

A different BWC video from PO Diaz from 02:10 to 05:10 captures § 87(2)(b) speaking with EMS (**Board Review 14**). One of the EMTs asks § 87(2)(b) what is going on and § 87(2)(b) tells her that PO Diaz handcuffed him and "fucked his whole ankle up." § 87(2)(b) says that his ankle is swollen and begins yelling as he says that he can't get up and walk because of PO Diaz. The EMTs and Sgt. Verdejo ask § 87(2)(b) if he wants to go to the hospital and he says that he does but wants to file a complaint first. The EMTs repeatedly ask § 87(2)(b) questions about his ankle and health, but § 87(2)(b) is uncooperative and yells at them instead of answering their questions. One of the EMTs asks § 87(2)(b) if he has any medical problems and § 87(2)(b) yells at her in response. The EMT says that they cannot speak with him, and they do not feel safe next to him. The EMT further states that no one there is safe talking to § 87(2)(b). The EMTs leave without providing any medical treatment to § 87(2)(b).

A third BWC video from PO Diaz from 00:00 to 00:30 captures § 87(2)(b) strapped onto a gurney, being placed into an ambulance by ESU officers (**Board Review 17**).

PO Diaz testified that § 87(2)(b) requested medical attention while at the desk (**Board Review 03**). EMS arrived and asked § 87(2)(b) a few questions, and § 87(2)(b) yelled at the EMTs and refused to answer their questions. PO Diaz provided EMS with § 87(2)(b) information and the EMTs ran a check on § 87(2)(b) which led to them finding out that he had a medical history as an emotionally disturbed person. The EMTs did not make any mention of what they believed § 87(2)(b) mental state to be at that time. EMS told § 87(2)(b) that if he would not answer their questions or allow them to help, they would leave. EMS left because § 87(2)(b) refused to cooperate. § 87(2)(b) continued yelling that he was in pain and needed an ambulance. Sgt. Verdejo told PO Diaz that § 87(2)(b) needed to be taken to the hospital because he was still screaming and complaining of pain, as well as for psychiatric reasons as the officers believed that § 87(2)(b) was a danger to himself and others due to his violent yelling and screaming. EMS was called back to the stationhouse and ESU was called to help remove § 87(2)(b) from the cells. ESU arrived and told § 87(2)(b) to stand up and go with them to the ambulance waiting outside. § 87(2)(b) refused and told ESU that he no longer wished to go to the hospital. ESU strapped § 87(2)(b) to a foldable chair. PO Diaz traveled in the ambulance to the hospital with § 87(2)(b).

A Medical Treatment of Prisoner Form prepared by PO Vargas for § 87(2)(b) notes that Sgt. Verdejo was the supervisor/desk officer at the time of removal (**Board Review 30**). It lists the type of aid as "med/psych" and notes that § 87(2)(b) was transported to § 87(2)(b) Hospital for medical attention for complaints of leg and wrist pain, where he was treated and released after receiving proper medical care.

Patrol Guide Procedure 216-01 requires officers to cooperate with ambulance and hospital personnel in every reasonable manner (**Board Review 31**). Patrol Guide Procedure 210-04 states that officers should request an ambulance and remove a prisoner to the hospital when a prisoner in custody requires medical/psychiatric treatment. It notes that, in all life-threatening situations, including, but not limited to, serious fractures, a prisoner will be removed to the nearest hospital (**Board Review 32**). Patrol Guide Procedure 221-02 requires that officers ensure that the subject of force used by an officer receives proper medical attention if they are injured or ill (**Board Review 29**). Patrol Guide Procedure 221-13 defines an emotionally disturbed person as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. It further requires officers to have an EDP removed to the hospital (**Board Review 33**).

§ 87(2)(b) repeatedly complained of multiple broken bones in his body due to PO Diaz's use of force while § 87(2)(b) was in police custody. EMS refused to provide field treatment or examine § 87(2)(b) in the field due to § 87(2)(b) uncooperative behavior. § 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **Within NYPD Guidelines**.

Allegation (H) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Travis Gembecki used physical force against § 87(2)(b)

Allegation (I) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Erick Landaverde used physical force against § 87(2)(b)

Allegation (J) Abuse of Authority: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Travis Gembecki threatened to arrest § 87(2)(b)

Allegation (K) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Travis Gembecki used physical force against § 87(2)(b)

Allegation (L) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Erick Landaverde used physical force against § 87(2)(b)

§ 87(2)(b) testified that he was brought back to the 47th Precinct stationhouse, from the hospital, and eventually released from there (**Board Review 02**). § 87(2)(b) went to retrieve his property; his cash was vouchered for safekeeping. § 87(2)(b) asked about his money and multiple officers told him that they were going to remove him from the stationhouse. Multiple officers then pushed § 87(2)(b) out of the stationhouse.

PO Vargas' BWC from 06:40 captures § 87(2)(b) retrieving his property upon release (**Board Review 18**). PO Adrian Martinez explains to § 87(2)(b) that he will be receiving a voucher for his money that he can cash. § 87(2)(b) repeatedly and loudly states that he does not want a check and that he wants his money with him. An officer in the background tells § 87(2)(b) that that is not the way it works. § 87(2)(b) raises his voice and tells the officer not to tell him how it works. § 87(2)(b) stands up and says, "because now—" while gesturing towards the officer with his hands. POs Gembecki and Landaverde walk towards § 87(2)(b) and PO Gembecki grabs him. After PO Gembecki grabs § 87(2)(b) PO Gembecki and PO Landaverde tell § 87(2)(b) that he needs to leave. PO Landaverde also grabs § 87(2)(b) and both officers maintain their grip on him while

pulling him towards the gate. Neither officer lets go of § 87(2)(b) POs Gembecki and Landaverde, each with one hand still on § 87(2)(b) push him through the gate and towards the front stairs of the stationhouse. No officer commands § 87(2)(b) to leave prior to POs Gembecki and Landaverde grabbing § 87(2)(b) does not tell any officer that he is not going to leave before he is ejected from the stationhouse, and no officer issues any warnings to § 87(2)(b) that he is going to be ejected prior to his ejection.

PO Gembecki's BWC from 00:58 to 01:30 captures § 87(2)(b) ejection from the stationhouse (**Board Review 19**). PO Gembecki grabs § 87(2)(b) left wrist and pulls him forward. PO Gembecki and PO Landaverde push § 87(2)(b) forward through the gate. Once through the gate, neither officer has his hands on § 87(2)(b) and § 87(2)(b) turns around towards the officers and does not make any movements towards the stationhouse exit as PO Landaverde points to the exit and tells him to get out. PO Landaverde then holds § 87(2)(b) by his arm and tells him again to get out, as § 87(2)(b) continues to remain stopped and turned away from the stationhouse exit. PO Gembecki tells § 87(2)(b) "Step out otherwise you're going to be arrested for trespassing." § 87(2)(b) does not move forward of his own volition. POs Gembecki and Landaverde push him out the front doors of the stationhouse.

PO Gembecki testified that he returned to the 47th Precinct for his end of tour when he saw § 87(2)(b) sitting at the T/S desk inside of the stationhouse (**Board Review 04**). PO Gembecki saw § 87(2)(b) yell at the officers and tell them that he was not leaving the stationhouse. PO Gembecki did not hear any officer tell § 87(2)(b) to leave. PO Gembecki did not give § 87(2)(b) any verbal commands to leave the stationhouse and grabbed § 87(2)(b) by the arm because he was being verbally aggressive and was not leaving. PO Gembecki pushed § 87(2)(b) on his back. PO Gembecki told § 87(2)(b) that if he came back, he was subject to arrest for trespassing, as § 87(2)(b) was not allowed to re-enter the stationhouse after being ejected.

PO Landaverde's testimony was consistent with PO Gembecki's (**Board Review 05**). PO Landaverde acknowledged that no officer issued § 87(2)(b) any commands to leave the stationhouse or any warnings that he was going to be ejected from the stationhouse prior to PO Gembecki grabbing him, and that both he and PO Gembecki pushed § 87(2)(b) PO Landaverde pushed § 87(2)(b) because he was assisting PO Gembecki in ejecting § 87(2)(b) and he pushed § 87(2)(b) a second time out of the stationhouse in furtherance of § 87(2)(b) ejection.

Patrol Guide Procedure 221-01 requires officers to prioritize de-escalation techniques to voluntarily gain compliance from a subject prior to the use of force, whenever possible. It further requires officers to consider the totality of the circumstances in determining whether the use of force is reasonable, including, but not limited to, the nature and severity of the circumstances and actions taken by the subject (**Board Review 28**). Patrol Guide Procedure 221-02 directs officers to apply no more than the reasonable force necessary to gain control (**Board Review 29**).

According to New York Penal Law § 140.05, a person is guilty of trespass when they knowingly enter or remain unlawfully within premises (**Board Review 34**).

§ 87(2)(b) was not issued any commands to stop his behavior prior to POs Gembecki and Landaverde grabbing him. § 87(2)(b) was told to leave once officers had hold of him but was not provided with ample time and opportunity to comply with said commands before POs Gembecki and Landaverde pushed him through the gate. § 87(2)(b) actions were limited to verbal complaints that he would not be receiving his money back as cash while he was gathering his property prior to leaving the stationhouse. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations H and I** be closed as **Substantiated**.

After POs Gembecki and Landaverde pushed § 87(2)(b) through the front gate of the stationhouse, PO Landaverde told § 87(2)(b) to get out. No officer was in physical contact with § 87(2)(b) at this point and § 87(2)(b) had the opportunity to leave voluntarily. Despite that, § 87(2)(b) did not voluntarily move towards the exit when he was provided the opportunity to do so, and instead stopped and turned away from the exit multiple times. § 87(2)(g)

PO Gembecki's statement of "step out, otherwise you are going to be arrested for trespassing" § 87(2)(g) it is recommended that **Allegation J** be closed as **Within NYPD Guidelines**. § 87(2)(g) § 87(2)(b) was no longer allowed in the station house. § 87(2)(g)

It is therefore recommended that **Allegations K and L** be closed as **Within NYPD Guidelines**.

Allegation (M) Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Steven Mora spoke discourteously to § 87(2)(b)

Allegation (N) Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Omar Habib spoke discourteously to § 87(2)(b)

Allegation (O) Abuse of Authority: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Omar Habib made a sexually suggestive remark to § 87(2)(b)

§ 87(2)(b) did not allege that any officer spoke discourteously to him (**Board Review 02**); however, the allegations were pled based on a viewing of PO Cassandra Marrero's BWC from 03:00 (**Board Review 22**). § 87(2)(b) having just been brought his property outside of the stationhouse, ignores his property and tells the officers outside to handcuff and arrest him for trespassing. PO Mora tells § 87(2)(b) "Just take your shit and get out of here, what the fuck," as PO Habib tells § 87(2)(b) "Just take your shit and go." PO Mora repeatedly tells § 87(2)(b) to take his shit and get out of there while § 87(2)(b) asks the officers to arrest him. § 87(2)(b) walks towards his property and PO Habib tells other officers to let § 87(2)(b) take his property out. § 87(2)(b) approaches PO Habib while saying, "my nigga, suck my dick. My nigga, suck my dick." PO Habib replies, "suck mine."

PO Mora acknowledged saying "Just take your shit and get out of here, what the fuck," and repeatedly saying "take your shit and get out of here" (**Board Review 06**). PO Mora could not provide a reason as to why he made the initial statement and testified that he repeatedly said it to get the point across.

PO Habib acknowledged saying, "just take your shit and go" (**Board Review 07**). PO Habib specifically used the word "shit" in reference to § 87(2)(b) property because it was common vernacular used in lieu of the word "stuff." PO Habib acknowledged telling § 87(2)(b) "Suck mine," in response to § 87(2)(b) statement of "suck my dick." PO Habib said it impulsively and was reflecting § 87(2)(b) vernacular. PO Habib noted that he only said, "suck mine" and not "suck my dick," therefore, he did not use the "derogatory" term.

Patrol Guide Procedure 200-02 states that officers must maintain a higher standard of integrity than

is generally expected of others and render their services with courtesy and civility (**Board Review 35**). In DAO DCT 2015-15012, the Court found that statements that serve no legitimate purpose but to belittle a civilian are discourteous in nature (**Board Review 36**).

Administrative Guide 332-01 defines sexual harassment as conduct which can, in certain circumstances, include sexually suggestive remarks and verbal abuse of a sexual nature (**Board Review 38**).

It is undisputed that PO Mora and PO Habib used profanity when speaking with § 87(2)(b) BWC footage showed that both officers made these statements in reaction to § 87(2)(b) refusing to take his property once it was brought to the street. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations M and N** be closed as **Substantiated**.

It is undisputed that PO Habib told § 87(2)(b) “Suck mine” in response to § 87(2)(b) statement, “suck my dick.” Based on the context of the statement, PO Habib’s “mine” statement was in reference to his own penis – PO Habib himself acknowledged that he said, “mine” as opposed to “my dick.” While PO Habib stated that his statement was simply a reflective response of § 87(2)(b) language and did not include the more “derogatory” term “dick,” § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation O** be closed as **Substantiated**.

Allegation (P) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Steven Mora used physical force against § 87(2)(b)

Allegation (Q) Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Police Officer Steven Mora spoke discourteously to § 87(2)(b)

Allegation (R) Force: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, officers used physical force against § 87(2)(b)

§ 87(2)(b) testified that, while he was outside, officers punched § 87(2)(b) in his face, stomach, and chest multiple times before arresting him again (**Board Review 02**). § 87(2)(b) could not provide any identifying information about which officers punched him, other than that the entire precinct was involved. § 87(2)(b) did not testify that any officer spoke discourteously to him; however, it was pled based on a viewing of PO Mora’s BWC footage from 03:17 (**Board Review 20**). About 10-15 officers are present. § 87(2)(b) approaches PO Habib with his fists clenched and shoulders hunched while telling PO Habib to suck his dick. § 87(2)(b) gets onto the ramp and within a foot of PO Habib while saying, “so what’s up?” PO Mora puts his hand on § 87(2)(b) chest and pushes him backwards towards a row of police vehicles on the street while saying, “you’re really going to start shit? What the fuck is wrong with you?” At 03:25, § 87(2)(b) asks “why are you hitting me?” It is unclear from this video who, if anyone, is hitting § 87(2)(b)

POs Gembecki, Mora, William Ortiz, and Marrero’s BWC videos all capture a group of about five to 10 officers converging onto § 87(2)(b) after PO Mora pushes him against a police vehicle on the street, eventually handcuffing him after about 30 seconds (**Board Reviews 19 – 22**). None of the videos capture any officer punching § 87(2)(b) although none of the BWC videos obtained by the investigation capture a clear recording of § 87(2)(b) apprehension.

PO Mora testified that he was concerned for the safety of everyone present, as § 87(2)(b) approached PO Habib as though he was ready to fight, since he was clenching his fists and tensing/flexing during his approach (**Board Review 06**). PO Mora was trained in the Academy that actions like the ones § 87(2)(b) was displaying were “pre-threat indicators” that indicated someone’s hostile intentions. § 87(2)(b) actions led PO Mora to believe that the best-case scenario was to get § 87(2)(b) in handcuffs before the situation escalated. PO Mora pushed § 87(2)(b) because, at that point, § 87(2)(b) was under arrest for disorderly conduct. PO Mora said, “so you’re really going to start shit, what the fuck is wrong with you,” as a reaction to § 87(2)(b) actions after having given § 87(2)(b) multiple opportunities to collect his belongings and walk away, and that it was a heat of the moment statement. PO Mora did not punch § 87(2)(b) or hit him in any way, nor did any other officer.

POs Gembecki, Landaverde, and Habib all testified that they did not see any officer punch § 87(2)(b) or hit him in any way, and that they themselves did not do so (**Board Reviews 04, 05, 07**). PO Habib noted that he saw some jerking movements in PO Ortiz’s BWC, and that those actions were just an officer gaining wrist control and pulling § 87(2)(b) arm towards his back and towards the officer conducting the motion so that they could handcuff him (**Board Review 07**). PO Landaverde independently testified to the same cause for the jerking motion (**Board Review 05**).

Patrol Guide Procedure 200-02 states that officers must maintain a higher standard of integrity than is generally expected of other and render their services with courtesy and civility (**Board Review 35**). According to DAO DCT 2013-10143, profanity is permissible in the heat of a highly dangerous situation (**Board Review 37**).

Patrol Guide Procedure 221-01 requires officers to consider the totality of the circumstances in determining whether the use of force is reasonable, including, but not limited to, the nature and severity of the circumstances, actions taken by the subject, and the immediacy of the perceived threat to members of the service (**Board Review 28**). Patrol Guide Procedure 221-02 directs officers to apply no more than the reasonable force necessary to gain control (**Board Review 29**).

Video evidence supports PO Mora’s testimony that § 87(2)(b) approached PO Habib in a physical and verbal manner that indicated that § 87(2)(b) was going to fight PO Habib. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation P** be closed as **Within NYPD Guidelines**.

PO Mora used profanity when speaking with § 87(2)(b) with at least 10 to 15 other officers present. The phrase expressed exasperation and included no commands or instructions. § 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation Q** be closed as **Substantiated**.

Officer testimony was consistent in that no officer testified to hitting or seeing another officer hit

§ 87(2)(b) Video evidence was inconclusive in that it did not capture any officer hitting § 87(2)(b) but also did not capture a clear overall image of the encounter, and § 87(2)(b) made spontaneous statements that he was being hit while he was being apprehended by officers. § 87(2)(g)

It is therefore recommended that **Allegation R** be closed as **Officers Unidentified**.

Allegation (S) Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Lieutenant Jason Bass spoke discourteously to § 87(2)(b)

Allegation (T) Discourtesy: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, Lieutenant Jason Bass spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not testify that Lt. Bass spoke discourteously to him; however, the allegations were added upon view of PO Villar's BWC footage (**Board Review 23**). From 03:00, § 87(2)(b) is back at the stationhouse desk after being arrested outside and yells multiple times at Sgt. Roth, who is behind the desk, to write him a summons and release him. Lt. Bass, who is also behind the desk, yells at § 87(2)(b) that they are going to "put [him] in the fucking cell" where he just was, write him a summons, and get § 87(2)(b) "the fuck out of here."

Upon being shown PO Villar's BWC, Lt. Bass acknowledged hearing himself tell § 87(2)(b) that they were going to "put [him] in the fucking cell" and get him "the fuck out of here" (**Board Review 08**). Lt. Bass did not recall making those statements and did not recall why he said them.

Patrol Guide Procedure 200-02 states that officers must maintain a higher standard of integrity than others and render their services with courtesy and civility (**Board Review 35**).

Although § 87(2)(b) was being verbally combative, Lt. Bass was not issuing any commands to § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegations S and T** be closed as **Substantiated**.

Allegation (U) Abuse of Authority: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, officers refused to provide their names to § 87(2)(b)

Allegation (V) Abuse of Authority: On June 22, 2022, at 4111 Laconia Avenue in the Bronx, officers refused to provide their shield numbers to § 87(2)(b)

§ 87(2)(b) testified that he requested the names and shield numbers of all the officers involved in his re-arrest and that they did not provide them (**Board Review 02**).

PO Villar's BWC footage from 03:50 to 04:03 captures § 87(2)(b) request the names and badge numbers of all the officers that were involved in his rearrest from Sgt. Roth and Lt. Bass (**Board Review 23**). § 87(2)(b) does not make a direct request for the name or badge number of any specific officer. At least 10 officers are captured in the area when § 87(2)(b) makes his request.

Administrative Guide 304-11 requires that officers courteously and clearly state their name and shield number to anyone who requests that they do so (**Board Review 39**).

§ 87(2)(g)

It is therefore recommended that **Allegations U and V** be closed as **Unfounded**.

Allegation (W) Abuse of Authority: On June 23, 2022, at 4111 Laconia Avenue in the Bronx, Sergeant Howard Roth refused to provide his name to § 87(2)(b)

Allegation (X) Abuse of Authority: On June 23, 2022, at 4111 Laconia Avenue in the Bronx, Sergeant Howard Roth refused to provide his shield number to § 87(2)(b)

Allegation (Y) Abuse of Authority: On June 23, 2022, at 4111 Laconia Avenue in the Bronx, Sergeant Howard Roth threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that, after he was released from his second arrest, he left the stationhouse and waited outside for an Uber (**Board Review 02**). Sgt. Roth told § 87(2)(b) that he could not stand in front of the stationhouse and threatened to arrest him for disorderly conduct and trespassing. § 87(2)(b) did not testify that Sgt. Roth refused to provide his name and shield number – those allegations were added upon viewing his BWC.

Sgt. Roth's BWC footage from 03:02, of the player's run time, captures § 87(2)(b) release from the stationhouse at 12:38 AM on June 23, 2023 (**Board Review 26**).

PO Carbo's BWC footage from 01:00 (1:08 AM) captures Sgt. Roth exiting the stationhouse and speaking with an individual named § 87(2)(b) (**Board Review 24**). There are no civilians on the sidewalk other than § 87(2)(b) and § 87(2)(b) at any point. There is little to no vehicular traffic. § 87(2)(b) tells Sgt. Roth that § 87(2)(b) is bothering her and following her. Sgt. Roth approaches § 87(2)(b) and § 87(2)(b) on the sidewalk and § 87(2)(b) tells Sgt. Roth that he needs to talk to § 87(2)(b) because he will "whack the fire out of her" with the way she was just talking to him. Sgt. Roth talks to § 87(2)(b) and she leaves. At 02:32, Sgt. Roth tells § 87(2)(b) that he needs to leave, and § 87(2)(b) tells Sgt. Roth that he is waiting for his Uber. At 05:11, Sgt. Roth repeats to § 87(2)(b) that he cannot be out there all night, and the officers start to return to the stationhouse. § 87(2)(b) tells the officers that they need to move their cars and that he can record now since he has his cell phone. At 05:51, a female officer starts to speak to § 87(2)(b) and he tells her to shut the fuck up, since he is speaking to Sgt. Roth. Sgt. Roth and PO Carbo walk down the ramp to § 87(2)(b). Sgt. Roth approaches § 87(2)(b) and § 87(2)(b) moves to the street, between two parked vehicles (not touching either vehicle), and starts recording Sgt. Roth. § 87(2)(b) says that Sgt. Roth is telling him that he cannot be there waiting for his Uber, then asks Sgt. Roth for his name and badge number. Sgt. Roth does not provide the information and instead says, "if you don't leave, you're going to be arrested for disorderly conduct." § 87(2)(b) asks, at the same time, if Sgt. Roth is going to arrest him for trespassing, then says that he just told the female officer to go fuck herself and that he is not being disorderly. Sgt. Roth says that § 87(2)(b) is causing public disturbance and alarm, and § 87(2)(b) says that there is nobody there. Sgt. Roth takes PO Carbo's handcuffs and repeats that § 87(2)(b) must leave. § 87(2)(b) walks down the street, away from the officers and stationhouse. At no point does § 87(2)(b) direct any of his statements towards individuals other than the officers, nor does § 87(2)(b) request the involvement of any other civilian, nor does any other civilian approach or gather around § 87(2)(b). Sgt. Roth does not tell § 87(2)(b) that he will arrest him for trespassing, nor does he provide his name or badge number at any point. A different BWC video from Sgt. Roth is consistent with PO Carbo's footage (**Board Review 27**).

Sgt. Roth did not have any independent recollection of the incident (**Board Review 09**). Upon viewing his own and PO Carbo's BWC footage, Sgt. Roth acknowledged not providing his name and shield number and while he did not know exactly what he was thinking, stated that he was likely concerned about § 87(2)(b) safety because § 87(2)(b) was in the street. Additionally, he was concerned about officer safety because § 87(2)(b) had a knife on him (previously returned to him when released from custody), was leaning against a police vehicle, and was cursing at the officers. Sgt. Roth stated that he did not provide his information because he wanted to deescalate the situation but could not explain how not providing his identifying information furthered that goal. Sgt. Roth acknowledged telling § 87(2)(b) that he could have been arrested for disorderly

conduct. § 87(2)(b) could have been arrested for disorderly conduct for refusing to leave the front of the stationhouse, as he was causing “public annoyance” and a “public scene,” based on his tone of voice, volume, and the fact it was 1:00 AM. He was not doing anything else to cause public annoyance and alarm and could not have been arrested for anything other than disorderly conduct.

Per Google Maps, the 47th Precinct stationhouse is situated in an otherwise residential area (**Board Review 47**).

Administrative Guide 304-11 requires that officers courteously and clearly state their name and shield number to anyone who requests that they do so (**Board Review 39**).

New York Penal Law § 240.20 states that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: makes unreasonable noise or uses abusive or obscene language (**Board Review 40**). In People v. Baker, 20 N.Y.3d 354, the Court opined that a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem (**Board Review 41**). In People v. Weaver 16 N.Y.3d 123, the Court ruled that a man who refused to cease yelling at his wife and officers, in a public place and late at night, was rightfully arrested for disorderly conduct due to the time and place of the episode, the nature of his conduct, and his disregard for commands from officers to cease his behavior, as his conduct recklessly created a risk of public inconvenience despite a lack of testimony from onlookers, in part based on a reasonable inference that guests were sleeping in a nearby hotel (**Board Review 46**).

At the time § 87(2)(b) requested Sgt. Roth’s name and shield number, he was standing between two parked vehicles (not in contact with either of them) on a road that was completely empty, with both hands on his phone. § 87(2)(b) was cursing at Sgt. Roth, as he had been doing for the many minutes and hours before requesting his name and shield number. § 87(2)(b) did not make any verbal threats towards the officers and nothing in his actions or language indicated that he was a physical threat towards Sgt. Roth. § 87(2)(g)

It is therefore recommended that **Allegations W and X** be closed as **Substantiated**.

Video evidence showed that Sgt. Roth did not threaten to arrest § 87(2)(b) for trespassing, only for disorderly conduct. Sgt. Roth issued multiple commands for § 87(2)(b) to leave the area, and § 87(2)(b) refused to do so. After speaking with the officers, § 87(2)(b) conduct escalated to yelling obscenities at an officer outside of the 47th Precinct stationhouse, which was situated in an otherwise residential area. § 87(2)(g) § 87(2)(g)

it is recommended that **Allegation Y** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- § 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Mora has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.
- PO Landaverde has been a member of service for six years and has been a subject in three other CCRB complaints and three other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Gembeki has been a member of service for six years and has been a subject in two other CCRB complaints and four other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Lt. Bass has been a member of service for 16 years and has been a subject in one other CCRB complaint and one other allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- PO Cabreramezquita was a member of service for two years and has been a subject in two other CCRB complaints and three other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Sgt. Verdejo has been a member of service for 12 years and has been a subject in five other CCRB complaints and seven other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Diaz has been a member of service for six years and has been a subject in one other CCRB complaint and three other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Vargas has been a member of service for one year and has been a subject in one other CCRB complaint and one other allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- PO Pellerano has been a member of service for 11 years and has been a subject in four other CCRB complaints and six other allegations, of which one was substantiated:
 - 201702561 involved a substantiated allegation of vehicle search against PO Pellerano. The Board recommended Instructions and the NYPD imposed Instructions. § 87(2)(g) [REDACTED]
- Sgt. Roth has been a member of service for 13 years and has been a subject in 13 other CCRB complaints and 27 other allegations, of which one was substantiated:
 - 201803048 involved a substantiated allegation of discourtesy against Sgt. Roth. The Board recommended Instructions and the NYPD imposed Instructions.
- PO Habib has been a member of service for 16 years and has been a subject in six other CCRB complaints and 16 other allegations, of which eight were substantiated:
 - 200914904 involved a substantiated allegation of force against PO Habib. The Board recommended Command Discipline and the NYPD imposed a penalty of 35 vacation days and five-day suspension.
 - 201602469 involved substantiated allegations of stop and retaliatory summons against PO Habib. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.

- 201801230 involved substantiated allegations of force and stop against PO Habib. The Board recommended Charges and the NYPD imposed 365-day dismissal probation.
- 201902427 involved substantiated allegations of discourtesy against PO Habib. The Board recommended Formalized Training and the NYPD imposed Instructions.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 7, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 43**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 1

Investigator:	<u>Inv. Adip Vora</u>	<u>Inv. Adip Vora</u>	<u>09/19/2023</u>
	Signature	Print Title & Name	Date

Squad Leader: Mgr. Joy Almeyda _____ 09.19.2023
Signature Print Title & Name Date